
THE ESSAYS OF FRANCIS BACON

judges do often consult with the king and state: the one, when there is matter of law intervenient in business of state; the other, when there is some consideration of state intervenient in matter of law. For many times the things deduced to judgment may be *meum* and *tuum*, when the reason and consequence thereof may trench to point of estate. I call matter of estate not only the parts of sovereignty, but whatsoever introduceth any great alteration or dangerous precedent, or concerneth manifestly any great portion of people. And let no man weakly conceive that just laws and true policy have any antipathy; for they are like the spirits and sinews, that one moves with the other. Let judges also remember that Solomon's throne was supported by lions on both sides; let them be lions, but yet lions under the throne, being circumspect that they do not check or oppose any points of sovereignty. Let not judges also be so ignorant of their own right as to think there is not left to them, as a principal part of their office, a wise use and application of laws; for they may remember what the apostle saith of a greater law than theirs: "Nos scimus quia lex bona est, modo quis ea utatur legitime."¹

¹ We know that the law is good, if a man use it lawfully.